

24NNCV00161 24NNCV00161

County: los-angeles

Division: Civil Law and Motion

Department: D

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Case Number: 24NNCV00161 Hearing Date: July 10, 2026 Dept: D

TENTATIVE RULING

Calendar: 10

Date: July 10, 2026

Case No: 24NNCV00161 Trial Date: November 16, 2026

Case Name: Fleites v. City of Pasadena

MOTION FOR LEAVE TO FILE A SECOND AMENDED COMPLAINT

[CCP § 473 subd. (a)(1)]

Moving Party: Plaintiff, Barbara Fleites

Responding Party: Defendant, City of Pasadena

RELIEF REQUESTED:

An order granting leave to file a Second Amended Complaint

CAUSES OF ACTION: from First Amended Complaint

1) Negligence

SUMMARY OF FACTS:

Barbara Fleites ("Plaintiff") alleges that on June 26, 2023, Plaintiff was walking along the sidewalk at or near 65 N. Madison Avenue, in the city of Pasadena, when Plaintiff tripped due to a gap in the sidewalk causing Plaintiff to suddenly and without warning fall down on the sidewalk. Plaintiff alleges that as a result of the subject incident, Plaintiff suffered injuries and damages to her person. Plaintiff further alleges that the area of the subject premises where Plaintiff walked was owned, leased, managed, possessed, maintained, occupied, and controlled by the City of Pasadena ("Defendant").

ANALYSIS:

The court may, in its discretion and after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars. (CCP, § 473, subd. (a)(1); *Branick v. Downey Savings & Loan Association* (2006) 39 Cal.4th 235, 242.)

As judicial policy favors resolution of all disputed matters between the parties, leave to amend is generally liberally granted. (See *Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 412.) The court may deny the plaintiff's leave to amend if there is prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation. (*Ibid.*) California courts ordinarily will not consider the validity of a proposed amended pleading in ruling on a motion for leave to amend given that any grounds for a demurrer or a motion to strike will be premature at that time. (*California Casualty General Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280-281 [citations omitted, overruled on other grounds].)

A motion to amend a pleading before trial must (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (California Rules of Court, rule 3.1324(a).) A separate supporting declaration specifying (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reason why the request for amendment was not made earlier must accompany the motion. (CRC, rule 3.1324 (b).)

Plaintiff seeks leave to file a second amended complaint to correct a location error in the First Amended Complaint. Plaintiff attaches a copy of the proposed second amended complaint to this motion. (Ex. A.) However, Plaintiff does not state what allegations are proposed to be deleted and/or added, if any, and where, by page, paragraph and line number, the deleted/additional allegations are located. (CRC, rule 3.1324 subd. (a).) Nor does the motion include a separate supporting declaration as required by CRC rule 3.1324, subdivision (b).

Accordingly, the motion is DENIED, without prejudice. Plaintiff may refile the motion in accordance with CRC rule 3.1324.

RULING:

Plaintiff Barbara Fleites's Motion for Leave to File a Second Amended Complaint is DENIED, without prejudice.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

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